TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
DECEMBER 1, 2025
MINUTES

STAFF REPORT

Present: Megan Stevens, Vice-chair, Giles Branch, Elliott Barrow, Joan Spier, Brian Stress.
Absent: Stephen Wood, Cheryll Woods-Flowers.
Staff: Matt Sims, Michael Robertson, James Ward, Jane Yager-Baumrind

Ms. Stevens called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Branch moved for approval of the agenda. Ms. Spier seconded the motion. All in favor.

B. Approval of Minutes

Mr. Branch moved for approval of the minutes. Ms. Spier seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Ms. Stevens continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Ms. Stevens reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. Case S-05-25, 558 Johnnie Dodds Boulevard, TMS# 514-00-00-006, Request for Special Exception in accordance with §156.1206 and

§156.369 to allow the use of a motor vehicle service and repair business in the Areawide Business-2 Zoning District.

- Mr. Sims reviewed the staff report with the Board.

- Mr. Robert Jones, 1699 Paradice Drive, Service Manager for Enterprise and representative for the owner, reviewed the request with the Board.

There being no comments, Ms. Stevens closed public comment and moved to Board questions.

- *Mr. Branch moved for approval based on the findings that the facility meets the requirements for a special exception for automotive repair uses and the property was originally zoned for automotive repair if the special exception requirements are met. Ms. Spier seconded the motion. All in favor.*

2. **Case A-04-25, 25 Vincent Drive, TMS# 535-13-00-027, Appeal of the Zoning Official's determination that Section 156.424(A)(2) requires attached accessory structures or uses to meet the zoning district setback requirements for the principal structure.**

- Mr. Sims reviewed the staff report with the Board.

- Mr. Matt McCauley, representatives for the owner, reviewed the request with the Board.

There being no comments, Ms. Stevens moved to Board questions.

- *Mr. Barrow moved for denial of the appeal and to uphold the Zoning Official's determination based on the findings that the pool and deck are attached to the principal structure and therefore must meet the principal structure setbacks as indicated in Section 156.424(A)(2), and the Board is barred from changing the setbacks based on the ordinance and the Zoning Official's determination was correct. Mr. Branch seconded the motion. All in favor.*

3. **Case V-36-25, 524 Whilden Street, TMS# 532-01-00-115, Request relief from the strict application of the standards in Table §156.039-1 R2**

Dimensional Standards to allow an eight (8) foot front yard and a three (3) foot side yard for a new detached house. The ordinance requires a twenty (20) foot front yard and an eight (8) foot side yard.

- Mr. Simms reviewed the staff report with the Board.

- *Mr. Barrow moved to convene into executive session for legal advice. Mr. Branch seconded the motion. All in favor.*

- The Board convened into executive session at 6:29 pm and reconvened at 6:42pm. No action taken while in executive session.

Due to a technical issue, a portion of the recording is not available.

Mr. Alan Biggers reviewed the request with the Board.

Ms. Cynthia Nirenblatt, 516 Whilden Street, suggested that the developer is not building the homes for sale and not for personal use. She expressed concern with additional flooding, and adequate parking. She asked that the requests be denied.

- Ms. English Davidson, 404 Morrison Street, stated that she is opposed to the request. She stated that her home floods because of being the lowest lot on the block and even had to move from her home for several months while the home was repaired due to significant flooding. She stated that she has also had sewer problems as well. She suggested that the neighborhood does not have the infrastructure to alleviate the flooding issues.

- Ms. Maria Austin, 414 Morrison Street, expressed concern with the arborist report and that the proposed work being allowed in proximity of a tree already voted to be preserved would potentially significantly damage the tree. She suggested that having required setbacks does not necessarily mean that the property cannot be utilized. She suggested that wanting a larger home, does not mean that you should be entitled to build a large home on a smaller lot. She suggested that the setbacks would have been known when the lot was subdivided and appears to be a self-inflicted hardship. She stated that there are significant flooding issues in the area as well.

▶ There being no further comments, Ms. Stevens closed public comment and moved to Board questions.

▶ *Mr. Barrow moved for denial of case V-36-25, 524 Whilden St, based on the findings that denial would not unreasonably restrict or prohibit utilization of the property and that there would be a substantial detriment to surrounding property, particularly with regard to 404 Morrison Drive. Mr. Stress seconded the motion. Motion passed on a 3 to 2 vote with Mr. Stress, Mr. Barrow, and Ms. Spier in favor; Ms. Stevens and Mr. Branch opposed.*

4. **Case V-37-25, 522 Whilden Street, TMS# 532-01-00-116, Request relief from the strict application of the standards in Table §156.039-1 R2 Dimensional Standards to allow a three (3) foot side yard for a new detached house. The ordinance requires an eight (8) foot side yard.**

▶ *Mr. Barrow moved for denial of Case V-37-25, 522 Whilden St, based on the findings that denial would not unreasonably restrict or prohibit utilization of the property and that there would be a substantial detriment to surrounding property, particularly with regard to 404 Morrison Drive. Mr. Stress seconded the motion. Motion passed on a 3 to 2 vote with Mr. Stress, Mr. Barrow, and Ms. Spier in favor; Ms. Stevens and Mr. Branch opposed.*

There being no further business, the meeting adjourned at 7:10 pm.

Submitted by,
L. Lynes
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